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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 79

AN ACT TO AMEND TITLE 13 OF THE DELAWARE CODE RELATING TO TERMINATION OF PARENTAL RIGHTS AND ADOPTION PROCEEDINGS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 11, Title 13 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1104A. Right to free legal counsel for certain relatives in termination of parental rights and adoption proceedings.

(a) A petitioner seeking to terminate parental rights for the purpose of adoption has the right to free legal counsel at all stages of the termination of parental rights and adoption proceedings, if all of the following apply:

(1) The petitioner is a relative of the child.

(2) The petitioner has guardianship of the child who is the subject of the termination of parental rights and adoption petitions.

(3) The guardianship order was entered in favor of the petitioner when the child was in Department custody and is in effect throughout the termination of parental rights proceedings.

(b) If the petitioner meets the requirements of subsection (a) of this section, the Court shall appoint an attorney authorized to practice law in this State to represent the petitioner if the petitioner requests such appointment in contemplation of terminating parental rights for the purpose of adoption. The appointment must be made regardless of the indigency status of the petitioner. The attorney shall serve as counsel for the petitioner at all stages of the proceedings, including pre-filing preparation, simultaneously filed adoption proceedings, and related appeals taken to the Supreme Court.

Section 2. Amend § 1107, Title 13 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1107. Time for hearing; preparation of social report.

(b) If a petition for termination of parental rights is filed and DSCYF or a licensed agency is not a party, the Court shall order DSCYF or a licensed agency to file a social report within 6 months. The Court shall set a date for a hearing to

23 take place after the report is to be filed, but not earlier than 12 months after the filing of the petition for proceedings under §
24 1103(a)(6) of this title, and notice must be accomplished under § 1107A of this title. If the petitioner is represented by
25 counsel appointed under § 1104A of this title, DSCYF shall prepare and file the social report at no cost to the petitioner.

26 Section 3. Amend § 912, Title 13 of the Delaware Code by making deletions as shown by strike through and
27 insertions as shown by underline as follows:

28 § 912. Social study and report.

29 (e) If the petitioner is represented by counsel appointed under § 1104A of this title, the Department shall prepare
30 and file the social report at no cost to the petitioner.

31 Section 4. Amend § 917, Title 13 of the Delaware Code by making deletions as shown by strike through and
32 insertions as shown by underline as follows:

33 § 917. Appeal.

34 (b) The Department, licensed ~~agency~~ agency, or any person party to the proceedings may file ~~such appeal~~. an
35 appeal under subsection (a) of this section. If the appellant is represented by counsel appointed under § 1104A of this title,
36 counsel's appointment must continue through an appeal filed under this section.

SYNOPSIS

This Act creates a right to free legal counsel for certain relatives seeking to terminate parental rights and adopt a child in the relative's family who has been in the custody of the Department of Services for Children, Youth and Their Families ("Department"). The right to free legal counsel applies at all stages of the termination of parental rights and adoption proceedings, including any appeals. This Act also requires the Department to prepare and file the social study and report that is a required part of the termination of parental rights and adoption process at no cost to the relative.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Wilson